



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles W. Bloom, AICP, Planning and Development Director
Subject: UDC-23-15 – County Pocket #1, Annexation
Date: February 27, 2023

Background:

The item for consideration is an *Annexation*. This is approved by ordinance. This annexation is comprised of five non-residential properties all 100% surrounded by the City. The City has maintained contact with the County Planning Office to coordinate any pending permits or development reviews. Currently there are no active building permits and there is one County Site Plan under review. The approved Site Plan will be grandfathered and allowed to develop in accordance with its approval.

The proposed Governing Body review schedule is as follows:

- Introduction and referral February 27, 2023
- Public Services Committee: March 7, 2023
- Second Reading: March 13, 2023
- Public Services Committee: March 21, 2023
- Third and Final Reading: March 27, 2021

On December 9, 2022, City staff mailed a courtesy notice to all landowners included in this annexation inviting them to a “Question and Answer” session on December 19, 2022, at the City Municipal Building. Representatives of two of the parcels within the annexation area attended the meeting and did not express opposition to the annexation. A media release was also released on December 15, 2022, identifying the subject properties and indicating the City’s intent to initiate the annexation process.

City-initiated annexations do not require an owner’s signature. To initiate an annexation, the City must adopt a Resolution certifying that the annexation complies with Wyoming State Statute § 15-1-402. After the City adopts this Resolution, the annexation follows the typical schedule, including a public hearing and the approval of an Ordinance which annexes the land. This resolution was adopted by the Governing Body on December 27, 2022.

As with any annexation, City services will be extended to service the land contained in the annexation. City utilities are already located in the vicinity. Police, fire, and sanitation services will be provided. As several parcels of land contained in this annexation area are developed, City sanitation service will need to be established and landowners have been notified of this required change. Infrastructure improvements required related to the annexation are minimal. Future development such as subdivision or new development, will require on- and off-site infrastructure improvements. Existing infrastructure

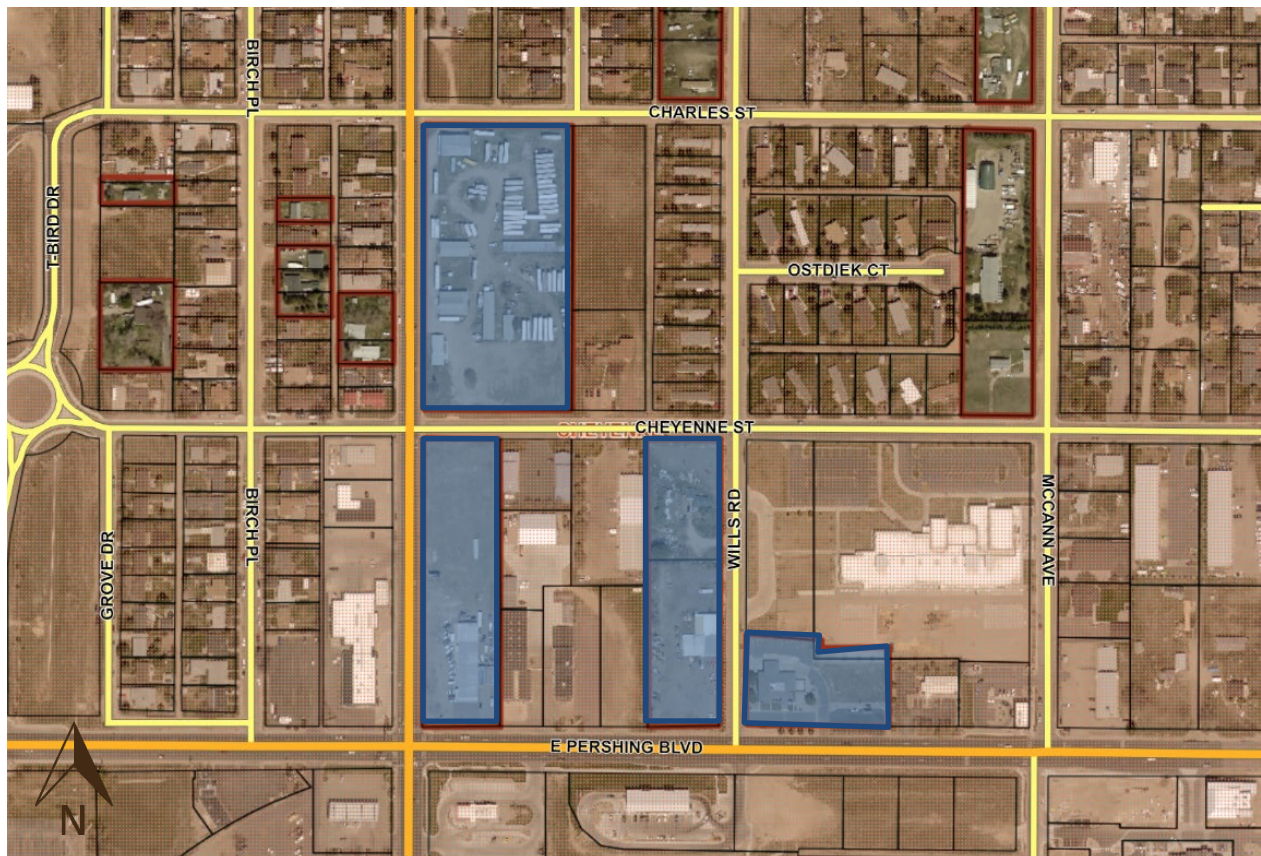
will remain as is upon annexation. All roads adjacent to annexed parcels are within City limits and maintained by the City.

The areas proposed for annexation are adjacent to land under City jurisdiction. Development in this area is a natural extension of the City. 100 % of the perimeter of the annexation area is contiguous to City limits.

Due to meeting the review criteria found in Wyoming Statute § 15-1-402, staff recommends approval of this annexation.

The Planning Commission considered establishment of MUB Mixed Use Business and CB Community Business at their February 6 and 27, 2023 meetings and have recommended the Governing Body approve that zoning for the area. The related zoning ordinance is a companion item on this agenda.

The map below shows the County pockets to be annexed in blue and other incorporated areas as orange.



Staff Recommendation:

Staff recommends the Governing Body approve the Annexation Ordinance.

Attachments:

1. Ordinance

ORDINANCE NO. _____

ENTITLED: “ANNEXING TO THE CITY OF CHEYENNE, WYOMING, TRACTS OF LAND SITUATED IN PORTIONS OF SUNNY SIDE ADDITION AND SUNNYSIDE ADDITION SECOND FILING, SECTION 12, T. 13 N., R. 67 W., 6TH P.M., LARAMIE COUNTY, WYOMING, GENERALLY LOCATED EAST OF RIDGE RD. BETWEEN CHARLES ST. AND PERSHING BLVD., WEST OF WILLS RD. BETWEEN CHEYENNE ST. AND PERSHING BLVD., AND NORTHEAST OF THE INTERSECTION OF PERSHING BLVD. AND WILLS RD.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

(a) That the City of Cheyenne has initiated this annexation in compliance with Wyo. Stat. § 15-1-404, and has adopted a Resolution certifying that the area to be annexed complies with the requirements of Wyo. Stat. § 15-1-402 (said resolution being adopted on December 27, 2022, as Resolution #6296);

(b) That an accurate legal description of said land is as follows:

Tracts of land situate in portions of Sunny Side Addition and Sunnyside Addition Second Filing, section 12, T. 13 N., R. 67 W., 6th p.m., Laramie County, Wyoming, being more particularly described as follows:

All of tracts 3, 4, 13, 16, Sunny Side Addition and portions tracts 17 and 18, Sunnyside Addition, Second Filing be more particularly described as follows: beginning at the southwest corner of said tract 17; thence N. 01°01' 50" W. along the west line of said tract 17 and the east line of Wills Road a distance of 196.64 feet to a point; thence S. 85°31'04" E. a distance of 131.68 feet to a point; thence S. 00°01'47" E. a distance of 46.81 feet to a point; thence S. 89°45'00" E. a distance of 168.73 feet to a point; thence S. 01°01'47" E. 140.11 feet to a point on the north line of Pershing Boulevard; thence N. 89°45'00" W. along the said north line a distance of 300.00 feet to the point of beginning.

Said parcels contain 9.87 acres or 429,747 square feet more or less;

(c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne;

(d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne;

(e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other

services customarily available in the City of Cheyenne can, within reason, be furnished;

- (f) That the area is considered contiguous to the City of Cheyenne according to the provisions of Wyo. Stat. § 15-1-402 (b) and is currently zoned X Exempt by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to Wyo. Stat. § 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Section 1(b) of this Ordinance is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That pursuant to Wyoming Statute § 15-1-405, the Governing Body held a public hearing on February 27, 2023, on the proposed and annexation and found that the annexation complied Wyo. Stat. § 15-1-402.

Section 4. That the map of the area to be annexed is shown in Attachment A, which is attached hereto and incorporated herein, satisfies the requirements of Wyo. Stat. § 15-1-406 and shall be recorded with the county clerk in conjunction with this ordinance.

Section 5. That the City Clerk is directed to file an executed copy of this annexation ordinance with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 7. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

published: _____

